ARTICLE 26. To see if the Town will vote to authorize the Select Board, upon request of the Conservation Commission, to take by eminent domain under the provisions of Massachusetts General Laws Chapter 79 and Chapter 40, Section 8C, as amended, for conservation, open space, and passive recreation purposes, the fee simple interest in a parcel of land of approximately 13.4 acres located at Forest Circle in Winchester identified as Parcel 1-202 on the Assessors Map in Winchester, being the same premises described in the Registry of Deeds Book 25797, Page 480, and Parcel 1-273 on the Assessors Map in Winchester, being the same premises described in a deed recorded in the Registry of Deeds in Book 37644, Page 43, or to take any other action in relation thereto.

(Conservation Commission, Michael Bettencourt)

MOTION: MOVED AND SECONDED that the Town authorize the Select Board to acquire by eminent domain under the provisions of Massachusetts General Laws Chapter 79 and Chapter 40, Section 8C, as amended, for conservation, open space, and passive recreation purposes, the fee simple interest in a parcel of land of approximately 13.4 acres located at Forest Circle in Winchester identified as Parcels 1-202 and 1-273 on the Assessors Map in Winchester, being the same premises described in the Registry of Deeds Book 25797, Page 480, and Parcel 1-273 on the Assessors Map in Winchester, being the same premises described in a deed recorded in the Registry of Deeds in Book 37644, Page 43, to be managed and controlled by the Conservation Commission of the Town of Winchester Massachusetts in accordance with Chapter 40, Section 8C for conservation, open space and passive recreation purposes and that the Town Manager or Conservation Commission be authorized to file on behalf of the Town of Winchester any and all applications deemed necessary under the Land and Water Conservation Fund Act (P.L. 88-578, 78 Stat 897), the Commonwealth of Massachusetts Executive Office of Energy and Environmental Affairs (EEA) Division of Conservation Services (DCS) Local Acquisitions for Natural Diversity (LAND) Program (301 CMR 5.00) or any other applications and reimbursements for funds in any way connected with the scope of this acquisition, and the Town Manager and the Conservation Commission be authorized, as they deem appropriate, to enter into all agreements and execute any and all instruments including the conveyance of a perpetual conservation restriction in accordance with M.G.L. Chapter 184 as required by Section 12(a) of Chapter 44B or Chapter 293 Section 10 of the Acts of 1998 as amended, as may be necessary on behalf of the Town of Winchester to affect said acquisition. Said conservation restrictions may be granted to any organization qualified and willing to hold such a restriction.

BACKGROUND: *The Conservation Commission proposes to acquire Forest Ridge, a property of approximately 13.66 acres of land off Forest Circle, off North Border Road, and off Fallon Road in Stoneham which abuts the Middlesex Fells Reservation for the creation of a conservation area. Access will be from Forest Circle, North Border Road, the Fells, and Fallon Road in Stoneham.*

Acquiring conservation land for open space and passive recreation is one of the key goals of the Massachusetts Community Preservation Act (M.G.L. Chapter 44B) and the Winchester Committee for Community Preservation (WCCP). Protecting this land directly advances Winchester's own 2020 Climate Action Plan (unanimously approved by the Select Board), which committed to preserving land for ecosystem services and climate resilience. Securing this property will permanently restrict development, safeguard essential natural resources such as biodiversity, tree canopy, wetlands and wildlife habitats, and create a conservation area for all to enjoy. The parcel contains three distinct high-value habitats: upland oak knolls, cattail swamp, red maple swamp. These habitats have Floristic Quality Index of 22, with 93% native species, notable for land surrounded by housing. It is part of a rare, prioritized wildlife corridor linking the Fells to the Aberjona watershed. This is important because larger, connected parcels support more biodiversity and resist pollution and invasive species better than fragmented land. The parcel is part of the watershed of the North Reservoir, part of Winchester's drinking water supply, a key resource to protect.

The conservation area will be managed by the Conservation Commission. The Commission envisions this conservation area to be a valuable resource for recreation and education through the creation of a trail

on the property to connect to the Middlesex Fells trails and to enable residents to explore and enjoy the various habitats on the property including wetlands and upland forest. These habitats can provide educational opportunities for students and scouts, WPS field trips, Eagle Scout projects, birding, and nature photography. Trail connectivity to the Fells will enhance the value of the conservation area for residents. All improvements will be funded by grants or use volunteers – NO further use of town funds is anticipated.

The land is currently under agreement with Bell Point Realty, a real estate developer working in Eastern MA and NH. Bell Point currently has a 32-unit single family home subdivision in the permit process in Essex, MA. The developer has approached at least 2 abutters to try to purchase their property to improve the access to Forest Ridge to enable a subdivision. While development proposals have not been successful in the past, once built, this parcel, one of the last remaining large area of undeveloped land in Winchester, will be forever lost.

Since the property is currently under agreement to Bell Point Realty, it cannot be purchased directly. Eminent domain is the only legal tool available to ensure the town retains this land for the public good. Landowner compensation is legally guaranteed at fair market value via independent appraisal (GAGAS / "Yellow Book" standard). This is a structured, standard public-acquisition process, not a seizure without payment. We have obtained an appraisal that meets "Yellow Book" standards.

We have recently received validation of the value of conserving Forest Ridge. The Town has received a state legislative earmark for $250,000 towards the acquisition and a state grant of $27,900 to be used for acquisition-related costs. The commission has applied for large land conservation grants at the federal and state levels and has been informed that these grants, totaling awards up to $1,425,000, are likely.

CPA funds, earmarks, and state grants can be used to pay fair market value in an eminent domain taking. Town Meeting will need to approve the borrowing to pay the fair market value. The resulting bond principle may be reduced by the external funding we have received. Currently borrowing costs are low, however with interest rates rising, the Town's borrowing costs may rise in the future.

The Winchester Committee on Community Preservation has provided a Statement of Support for the Forest Ridge Project on 01 October 2026:

> *Based on WCCP's current understanding of the proposal by the Winchester Conservation Commission for the town to acquire the land known as Forest Ridge, with the property to be bound by a permeant conservation restriction, WCCP passed a resolution on 17 September 2026 in support of using CPA funds for this purpose at a price to be determined but not to exceed the amount ser forth in the current appraisal provided to the WCCP ($2.85 Million as of the date of this resolution), provided that Town Meeting votes to take the property by eminent domain and that the Select Board votes to authorize and execute the taking of the property by eminent domain.*
>
> *Any use of CPA funds for the Forest Ridge project shall be subject to the presentation of a Final Application to the WCCP, a vote of the WCCP members then in office to recommend the appropriation of such funds to Town Meeting, and subsequent appropriation by Town Meeting. This letter is a statement of conditional support only and does not commit the WCCP to recommend any appropriation to Town Meeting.*

This is a unique opportunity to preserve land for protection of the town's drinking water watershed, climate resilience, habitat preservation, and resident use and enjoyment in perpetuity. It is affordable and will not draw further on town funds. As Winchester continues to densify to provide more housing opportunities, it is more important, not less, to preserve offsetting open land now.

2/3rd Vote Required